

26STCP00367 26STCP00367

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-07-13

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Case Number: 26STCP00367 Hearing Date: July 13, 2026 Dept: 507

Tentative

Ruling

Judge Nicholas

F. Daum, Department 507

HEARING

DATE: July 13, 2026 TRIAL

DATE: N/A

CASE: Forward Financing LLC v. Hibachi House,
Inc., et al.

CASE

NO.: 26STCP00367

PETITION TO CONFIRM ARBITRATION

AWARD

MOVING

PARTY: Petitioner Forward Financing, LLC

RESPONDING

PARTY(S): No

response on eCourt as of 07/09/26

TENTATIVE RULING:

Petitioner

Forward Financing, LLC seeks confirmation of an arbitration award. As the procedural requirements for that petition have been met and there is no opposition nor cross-petition to vacate or modify the arbitration award, the Court grants the petition.

Any

party to an arbitration award may petition the court to confirm, correct, or vacate the award. (Code Civ. Proc. § 1285.) “If a petition or response under this chapter is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding.” (Code Civ. Proc. § 1286, bold emphasis added.) A petition to confirm a binding arbitration must name as respondents all parties to the arbitration and may name any other parties to be bound by the award. (Code Civ. Proc. § 1285.) The petition shall (1) set forth the substance of or have attached a copy of the agreement to arbitrate unless petitioner denies the existence of such an agreement; (2) set forth the name(s) of the arbitrator(s); and (3) set forth or have attached a copy of the award and written opinion of the arbitrator. (Code Civ. Proc. § 1285.4(a)-(c).)

The

petition to confirm must be served and filed no later than four years after the date of service of a signed copy of the award on the petitioner (Code Civ. Proc. § 1288) but may not be served and filed until at least 10 days after service of the signed copy of the award upon the petitioner. (Code Civ. Proc. § 1288.4.)

Here,

all parties to the arbitration are named in the petition. (Petition ¶ 1.) The agreement to arbitrate is attached to the Petition. (Attach. 4b.) The name of the arbitrator, Gary Western, Esq., is set forth in the Petition. (¶ 6.)

A

copy of the executed arbitration award, dated December 31, 2025 is also attached to the petition. (Attach. 8(c).) The Award was served on all parties on January 5, 2026. (Id.) The petition to confirm was filed on January 27, 2026. The Respondents were served via personal service on March 24, 2026. (Proof of Service filed May 8, 2026.)

No

petition to vacate or correct the award has been filed. A petition to vacate an award or correct an award must be served and filed no later than 100 days after the date of service of a signed copy of the award on the party petitioning to vacate or correct the award. (Code Civ. Proc. § 1288.) The Court may not correct or vacate an award unless a petition or response requesting that the award be corrected or vacated has been filed. (See, e.g., Valsan Partners Ltd. P'ship v. Calcor Space Facility, Inc. (1994) 25 Cal.App.4th 809, 818.) The time to petition to vacate or correct the award expired on April 15, 2026. As no opposition nor petition to vacate has been received, the Court grants the Petition.

Accordingly,
the Petition to Confirm Arbitration Award is GRANTED.

Moving Party to give notice.

IT IS
SO ORDERED.

Dated: July 13, 2026 _____

Nicholas
F. Daum

Judge
of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.